

		As in <i>Avila</i>, Plaintiff's Complaint alleges elder abuse, not medical malpractice, professional negligence, or common law negligence. As discussed, "If... the primary basis is under the [Elder Abuse Act], then section 1295 does not apply and neither does Ruiz's exception to the general rule that one who has not consented cannot be compelled to arbitrate." (<i>Avila, supra</i>, 20 Cal.App.5th at p. 842; <i>Daniels, supra</i>, 212 Cal.App.4th at pp. 683-684.) Therefore, the Petition is GRANTED as to the first cause of action for elder abuse – neglect, the third cause of action for negligence, and the fourth cause of action for violation of Residents' Bill of Rights (Health and Safety Code Section 1430(b)). This action is STAYED as to the second cause of action for wrongful death as to Plaintiffs Myrine Smith, Ronald Pascual, Normal Pascual, and Anthony Pascual. This court can lift the stay after the arbitrator issues his or her award. Once the arbitration award is confirmed by this court pursuant to Code Civ. Proc § 1287.6, the remaining cause of action for wrongful death can be adjudicated by this court. An ADR Review Hearing is scheduled for April 9, 2024 at 9:00 a.m. in Department N16. Defendant to give notice.
7	Asics America Corporation vs Shoebacca LTD.	Motion to Seal TENTATIVE RULING: Defendant and Cross-Complainant Shoebacca, Ltd.'s Motion to Seal Confidential Documents Filed in Support of Asics America Corporation's Answer to Shoebacca, Ltd.'s Second Amended Cross-Complaint is GRANTED. Plaintiff and Cross-Defendant Asics America Corporation's Answer to the Second Amended Cross-Complaint [ROA # 772] is sealed. The Court finds <i>Mercury Interactive Corp. v. Klein</i> (2007) 158 Cal.App.4th 60 addresses this particular issue, as information obtained from sealed and confidential discovery materials, and which are later incorporated into Plaintiff's Answer to the Second Amended Cross-Complaint, are not submitted "as a basis for adjudication," and thus do not become accessible to the public, simply by virtue of it becoming a part of the court file. (<i>Mercury, supra</i>, 158 Cal.App.4th at pp. 90, 103.)

		The <i>Mercury</i> court also held that the rules 2.550 and 2.551 of the Rules of Court, which it referred to in its opinion as the “sealed records rules,” do not apply to discovery materials that were not used at trial, and that were not used as a basis for adjudication. (<i>Mercury, supra</i>, 158 Cal.App.4th at pp. 100, 101.) Thus, there is no presumption of public access, and Defendant does not have to establish an overriding interest that would overcome the right of public access to the record. (Cal. Rules of Court, rule 2.550(d).) Moreover, allowing Plaintiff to evade the parties’ Stipulation and Protective Order, as well as the Court’s July 12, 2023 ruling that the underlying documents would be sealed, “would invite myriad discovery skirmishes,” as it would disincentivize parties from entering into protective orders that can be easily circumvented. (See <i>Mercury, supra</i>, 158 Cal.App.4th at pp. 98-99.) Plaintiff attempts to distinguish <i>Mercury</i> by arguing “unlike the factual statements supporting ASICS’ affirmative defense of fraud, the exhibits in <i>Mercury Interactive</i> ‘contain[ed] a significant amount of material other than what [was] excerpted in the Complaint,’ were ‘entirely unnecessary to the pleading,’ and were filed when the validity of the later-dismissed complaint was in question.” Plaintiff further argues that “the factual statements supporting ASICS’ affirmative defense of fraud in its Answer are not submitted in connection with a discovery motion or proceeding. Instead, they are submitted to establish the factual grounds for adjudicating ASICS’ defense to Shoenacca’s breach of contract claim.” (Opposition, 2:26-3:15.) The Court finds these arguments unavailing. It matters not whether Plaintiff attached the sealed documents to its Answer, rather than merely referencing information obtained from the same sealed documents. This is a distinction without a difference. Further, the facts alleged in an Answer, much like the allegations of a Complaint, are not submitted as a basis for the adjudication of Defendant’s claims, or Plaintiff’s affirmative defenses. (<i>Mercury, supra</i>, 158 Cal.App.4th 60, 103.) Moving party to give notice.
8	Gatewood vs The Irvine Company, LLC	Application/Request TENTATIVE RULING: <u>Motion for Determination of Good Faith Settlement.</u>